
Jack Smith lays it out: Trump has shattered the rule of law

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Jack Smith lays it out: Trump has shattered the rule of law

Last week at the World Economic Forum in Davos, Canadian Prime Minister [Mark Carney](#) gave what is likely to be remembered as an [historic speech](#) in which he declared “there has been a rupture in the world order, the end of a pleasant fiction and the beginning of a harsh reality, where geopolitics, where the large, main power, geopolitics, is submitted to no limits, no constraints.” He made it clear that America’s allies finally understood that the reelection of [Donald Trump](#) had ushered in a new era in which the rule book that had, for better or worse, guided the world for over 80 years has just been thrown out the window. Carney urged what he called the “middle powers” to stand up for their principles and self-interest.

One couldn’t help but think of that call to arms just a couple of days later when former special prosecutor [Jack Smith](#) appeared before the House Judiciary Committee to [testify](#) for the first time in public. While his [opening statement](#) will not have the historic significance of Carney’s speech, the sentiment was very much the same: There has been a rupture and something important is at stake.

“I have seen how the rule of law can erode,” Smith said. “My fear is that we have seen the rule of law function in this country for so long that many of us have come to take it for granted. But, the rule of law is not self-executing — it depends on our collective commitment to apply it. It requires dedicated service on behalf of others, especially when that service is difficult and comes with costs. Our willingness to pay those costs is what tests and defines our commitment to the rule of law and to this wonderful country.”

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The rupture in America was Jan. 6, and the subsequent destruction of the rule of law is now in full effect as the president of the United States openly abuses his power to wreak revenge on his political enemies.

The rupture in America was [Jan. 6](#), and the subsequent destruction of the rule of law is now in full effect as the president of the United States openly abuses his power to wreak revenge on his political enemies, allows paramilitary troops to commit mayhem in the streets of American cities by defying all rules, norms and legal constraint. The people of [Minneapolis](#) — including Alex Jeffrey Pretti, a 37-year-old Veterans Affairs intensive-care unit nurse and a U.S. citizen who was needlessly [gunned down](#) by Border Patrol agents on Saturday — are paying the costs of what Smith described, as are others who’ve been targeted by the Trump administration.

Just as Carney aimed his speech at the other democracies that have depended on the American security guarantee, Smith was speaking to Congress, perhaps in the vain hope that even some Republicans would listen. He surely hoped that his statement might reach the majority of the public that is appalled by what they are seeing the administration do to rule of law.

Smith testified in a straight, “just the facts” manner, refusing to take the bait from Republicans on the panel who were trying to make him lose his cool. A long-time career prosecutor, he knew better than to fall into their traps. But that didn’t make his testimony any less dramatic.

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“Donald Trump is the person who caused Jan. 6,” Smith said. “[T]he evidence established that he willfully broke the law, the very laws he took an oath to uphold. Grand juries in two separate districts reached this conclusion based on his actions as alleged in the indictments they returned.” The facts, he testified, remain clear: “President Trump engaged in a criminal scheme to overturn the results and prevent the lawful transfer of power.”

Smith was also direct about Trump’s [alleged mishandling](#) of classified documents, stating that he “illegally kept [them] at his Mar-a-Lago social club and repeatedly tried to obstruct justice to conceal his continued retention of those documents.”

The clean, spare way that Smith laid out the cases proved a reminder of what the country might have been spared — a second Trump presidency — had the [Justice Department](#) under former Attorney General Merrick Garland moved faster, had the courts not indulged Trump’s delaying tactics and had enough Americans not inexplicably decided to ignore mounds of credible evidence and put Trump back in the White House. The former special counsel’s obvious confidence and competence made it all the more depressing; he would have held Trump accountable.

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And it’s clear Smith possessed incriminating testimony. “Some of the most powerful witnesses were witnesses who, in fact, were fellow Republicans who had voted for Donald Trump, who had campaigned for him and who wanted him to win the election.”

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Smith’s appearance reminded us that these cases weren’t big mysteries. The only defense Trump could have possibly presented would have been that the law shouldn’t apply to him. It’s hard to imagine that a jury would have felt the same way.

Over and over again, Smith repeated that he and his team had turned up enough evidence to prove beyond a reasonable doubt that Trump had committed the crimes for which he had been indicted. And when asked if the president knew that he had lost the election, the former special counsel pulled no punches. “Our investigation revealed that Donald Trump was not looking for honest answers about whether there was fraud in the election,” Smith said. “He was looking for ways to stay in power... He, in fact, knew that the fraud claims he was making were false.”

Republicans on the panel pushed their narrative that Smith and his team had operated as partisan operatives at the behest of former President [Joe Biden](#), which we know is not true. And Smith’s testimony obviously incensed Trump, who spent the rest of the day and half the night obsessively [attacking](#) his nemesis and posting conspiracy theories about the 2020 election. The former special counsel, Trump said, is a “deranged animal” and [accused him](#) of “large scale perjury” in his congressional testimony. The president all but directed Attorney General [Pam Bondi](#) to “[look] at what [Smith’s] done” and said that “a big price should be paid” by Smith and the witnesses he had — nearly all of whom were Republicans — “for what they put the country through.”

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Smith was asked if he anticipated facing prosecution from Trump's Justice Department. He replied, "I believe they will do everything in their power to do that because they have been ordered to by the president." Considering what Trump was posting, it's hard to argue otherwise.

It's doubtful that Smith's testimony will have changed anyone's mind. Trump's cult following believes that Jan. 6 and the classified documents case were all a hoax perpetrated by Democrats. But it's important to have Smith on the record — and for the country to see him as the sober, serious public servant he is. If there's any hope for restoring the rule of law in this country, we must preserve the idea that such people exist. The Republican Party's corrupt abuse of power has made it all too easy to forget that.

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